The consummation of the Merger is subject to customary closing conditions, including (i) the adoption of the Merger Agreement by the affirmative vote of the holders of at least two-thirds of all outstanding Common Shares and 6 3/4% Cumulative Convertible Preferred Shares, voting as a single class; (ii) the expiration or early termination of the applicable waiting period under the Hart-Scott-Rodino Antitrust Improvements Act of 1976, as amended and (iii) the receipt of any required consents or approvals from (a) the Committee on Foreign Investment in the United States, (b) the Federal Communications Commission, (c) state public service and state public utility commissions, and (d) local regulators in connection with the provision of telecommunications and media services; and (iv) the absence of any legal restraint preventing the consummation of the Merger.

The Merger Agreement contains representations and warranties and covenants of the parties customary for a transaction of this nature. Among other things, the parties have agreed to use reasonable best efforts to obtain any required regulatory approvals. Until the earlier of the termination of the Merger Agreement and the Effective Time, the Company has agreed to operate its business in the ordinary course in all material respects and has agreed to certain other operating covenants and to not take certain specified actions prior to the consummation of the Merger, as set forth more fully in the Merger Agreement. The Company has also agreed to convene and hold a meeting of its shareholders for the purpose of obtaining the Shareholder Approval.

Brookfield has obtained equity financing commitments from certain of its affiliates to fund the transactions contemplated by the Merger Agreement. The Merger Agreement requires Brookfield to use its commercially reasonable efforts to obtain the financing on the terms and conditions described in the financing commitments. The Company is entitled to specific performance to force Brookfield to close the transaction if all closing conditions are met.

The Merger is expected to close by the end of 2020, although there can be no assurance that the Merger will occur by that date. As a result of the Merger, the Company will cease to be a publicly traded company.

Unsolicited Proposal

On January 22, 2020, the Company received an unsolicited, non-binding proposal from an infrastructure fund (the “Fund”) to acquire all of the outstanding Common Shares for $12.00 per share in cash (the “Proposal”). On January 23, 2020, the Company commenced discussions with the Fund regarding the Proposal following the Board of Directors having made the required determinations under the Merger Agreement that allow it to do so.

5. Earnings Per Common Share

Basic earnings per common share ("EPS") is based upon the weighted-average number of common shares outstanding during the period. Diluted EPS reflects the potential dilution that would occur upon issuance of common shares for awards under stock-based compensation plans, or conversion of preferred stock, but only to the extent that they are considered dilutive.

The following table shows the computation of basic and diluted EPS:

	Year Ended December 31,		
(in millions, except per share amounts)	2019	2018	2017
Numerator:			
Net (loss) income	$ (66.6)	$ (69.8)	$ 40.0
Preferred stock dividends	10.4	10.4	10.4
Net (loss) income applicable to common shareowners - basic and diluted	$ (77.0)	$ (80.2)	$ 29.6
Denominator:			
Weighted-average common shares outstanding - basic	50.4	46.3	42.2
Stock-based compensation arrangements	—	—	0.2
Weighted-average common shares outstanding - diluted	50.4	46.3	42.4
Basic and diluted net (loss) earnings per common share	$ (1.53)	$ (1.73)	$ 0.70

In conjunction with the acquisition of Hawaiian Telcom in the third quarter of 2018, the Company issued 7.7 million Common Shares as a part of the acquisition consideration. In addition, the Company granted 0.1 million time-based restricted stock units to certain Hawaiian Telcom employees under the Hawaiian Telcom 2010 Equity Incentive Plan.

For the years ended December 31, 2019 and December 31, 2018, the Company had a net loss available to common shareholders and, as a result, all common stock equivalents were excluded from the computation of diluted EPS as their inclusion would have been anti-dilutive. For the year ended December 31, 2017, awards under the Company’s stock-based compensation plans for common shares of 0.2 million, were excluded from the computation of diluted EPS as their inclusion would have been anti-dilutive. For all periods presented, preferred stock convertible into 0.9 million common shares was excluded as it was anti-dilutive.